TIER ONE INSURANCE COMPANY

Headquarters: Columbus, Georgia 31999

GENERAL AGENT'S AGREEMENT

General Agent:

Tier One Insurance Company, a Nebraska corporation engaged in the business of underwriting and selling certain insurance policies in the United States of America ("**Tier One**"), and the undersigned general agent named below ("**GA**"), in consideration of their obligations in this Agreement and intending to be legally bound, agree as follows:

1. Appointment and Responsibilities of GA.

1.1 Appointment. Subject to the terms of this Agreement and from and after the date of this Agreement, Tier One engages GA to solicit (and manage the solicitation of) applications for insurance policies offered for sale by Tier One (the "Policies") in the Territory (as defined in Section 6.3), and to service (and manage the servicing of) the Policies in the Territory to the extent specifically authorized. GA acknowledges that this Agreement does not confer on GA exclusive rights in any territory. GA acknowledges and agrees that it may be subject to oversight by personnel of Tier One.

1.2 Nature of Relationship. GA agrees that it shall be an independent contractor of Tier One. Nothing in this Agreement shall be construed or deemed to create a relationship of employer or employee, partnership, joint venture, principal or agent, nor shall this Agreement be construed in any proceeding or for any purpose whatsoever so as to make one party liable to a third person for the debts, faults or actions of the other. GA is hereby advised that as an independent contractor GA has certain responsibilities under the federal tax laws. For example, GA must report all sales commissions to the IRS on the appropriate income tax form and pay any federal income taxes due with respect to these amounts. In addition, GA must report all sales commissions on the appropriate self-employment tax form and pay any self-employment ("S.E.C.A.") taxes with respect to these amounts. To assist GA in complying with these requirements, Tier One will, after the close of each calendar year, furnish GA with a copy of the Form 1099 Income Statement for any commission amounts paid directly by Tier One to GA. GA hereby acknowledges that other laws and regulations are applicable to it as an independent contractor, and GA hereby agrees to comply with all such laws and regulations.

1.3 Engagement of Agents. GA may choose to engage licensed insurance agents approved by Tier One (the "Producers") to solicit applications for the Policies in the Territory and to service the Policies within the Territory except that, unless otherwise permitted in writing by Tier One, GA may not engage a Producer who was engaged by Tier One as a sales associate within the two previous years to solicit applications for the Policies or service the Policies.

Tier One hereby authorizes GA, during the term of this Agreement, to perform any and all acts and execute any and all documents and instruments on Tier One's behalf in order to, appoint and obtain the necessary license(s), affiliations, designations and endorsements for Producers to sell and services the Policies within the Territory. Tier One shall be responsible for all GA and Producer appointment, licensing, affiliation, designation and endorsement fees, and for ensuring that GA and Producer meet all licensure, affiliation, designation and endorsement requirements pursuant to applicable laws and regulations. Each Producer's engagement and appointment shall be approved and accepted by Tier One based on the passage by each Producer of state and federal criminal and civil background checks conducted by Tier One or its designee. Such state and federal criminal and civil background checks and all related notices, disclosures and authorizations thereto, shall be conducted by Tier One or its designee in accordance with Tier One's written instructions (including Tier One's written appointment guidelines) that have been provided to GA and in accordance with applicable laws and regulations.

Upon appointment by Tier One, GA may utilize Producers in accordance with the terms and conditions of this Agreement; provided, that (a) utilization of one or more Producers will not relieve GA of any of its duties or obligations under this Agreement, (b) GA will remain responsible and liable for insuring that the sale of all policies complies with applicable laws and regulations.

Tier One shall have no obligation to a Producer except as provided in this Agreement and as required by applicable laws and regulations. Tier One may revoke its approval of any Producer at any time and for any reason. As used hereafter in this Agreement, "Producer" will refer only to a Producer engaged by a GA and whose appointment is in force. Tier One shall have the discretion from time to time, subject to the approval of GA, to permit certain designated Tier One sales associates and agents to assist GA in the solicitation of applications for the Policies from particular accounts. Accordingly, all references hereafter to GA's rights, obligations, liabilities and responsibilities with respect to the Producers shall be deemed to include any Tier One sales associate or agent that has been authorized in writing to assist GA pursuant to the preceding sentence. Such Tier One sales associates and agents shall hereinafter be referred to as the "Associates." Notwithstanding anything to the contrary herein, GA shall have no responsibility for actions of the Associates, unless such actions were taken by Associates at the request of GA.

1.4 Responsibilities of GA. In general, the duties of GA shall be to: (a) procure and maintain all necessary licenses, affiliations, designations and endorsements required for efforts to solicit applications for and service the Policies and to manage such solicitation and servicing by the Producers; (c) pay all expenses incurred by GA in the performance of its duties under this Agreement; (d) use only promotional material approved, in writing, by the Compliance Division of Tier One with respect to Tier One-related business; (e) ensure that applications for the Policies it submits to Tier One are completed accurately before submission and make full and accurate disclosure to Tier One of all facts of which GA is aware that might affect Tier One's decision as to underwriting of the risk; (f) forward all applications for the Policies to Tier One promptly as well as all initial premiums that may be due on the applications; (g) comply, on behalf of itself and its Producers, fully with all applicable federal, state and local insurance and other laws, regulations and ordinances; (h) train the Producers or make certain of their training by Tier One; (i) supervise the Producers; and (j) be responsible for any commissions or other compensation it may be obligated to pay the Producers. GA shall familiarize itself and the Producers with all applicable rules and procedures of Tier One furnished to it by Tier One and abide by and require the Producers to abide by these rules and procedures. Tier One may incorporate some or all of these rules and procedures in one or more reference documents such as a procedures manual. The terms of such documents, and any amendments or supplements thereto (provided a copy has been furnished to GA by Tier One), shall be deemed incorporated by reference into this Agreement, except that in the event of any conflict between the terms of such documents and this Agreement, the terms of this Agreement shall control. The parties acknowledge that any such rules and procedures are not intended to limit GA's free exercise of its business judgment as to the persons from whom it will solicit applications and the time and place of such solicitation, but rather are intended to ensure that Policy applications submitted by GA and the Producers conform to Tier One's methods of conducting its business. GA agrees that the terms and conditions of this Agreement and any documents incorporated by reference shall be confidential between GA and Tier One.

1.5 Limits of Authority. GA shall not, and shall not permit or authorize the Producers to: (a) waive, alter or change any provision or condition of any of the Policies, Policy applications or related literature, or bind coverage; (b) modify or extend the amount of time for the payment of any premium; (c) receive any money due Tier One except as specifically authorized in writing by a Tier One officer and only to the extent permitted by Tier One collection practices; (d) enter into any contract or incur any expense or obligation in the name of Tier One; (e) publish, or cause to be published or printed, anything concerning Tier One's business; (f) advertise Tier One's services, without Tier One's prior written approval (including, among other things, conducting mass marketing or direct mail programs); and (g) use Tier One's (or Aflac and its affiliates) name, trade names, trademarks or logos in connection with its business without the prior written approval of Tier One. GA shall notify Tier One promptly if it has knowledge of or suspects any Producer is engaging in any of the activities enumerated in clauses (a) through (g).

1.6 Tier One Monies and Lien for GA Obligations. Subject to Section 1.5(c), GA shall hold any funds or instruments it receives or collects for or on behalf of Tier One in a fiduciary capacity for Tier One. Any indebtedness owed by GA to Tier One shall be secured by a first lien on all commissions due, to become due or held by GA, and GA agrees to cooperate with Tier One to further perfect said lien to the extent necessary and requested by Tier One. Tier One at any time may offset against all commissions accrued or to accrue to GA any indebtedness of GA due Tier One (including, without limitation, indebtedness resulting from advancements and chargebacks) arising in connection with GA's responsibilities under this or any previous agreement with Tier One or its affiliates.

2. Duties of Tier One. Tier One shall provide GA with standard promotional material to be used in the sale and service of the Policies. Tier One shall consider, and then approve or reject, each Policy application submitted by GA or the Producers. Tier One shall have sole authority for prescribing rules and making decisions regarding the eligibility of applicants for the Policies. Tier One shall be responsible for (a) issuance of all Policies, certificates and endorsements with respect to the Policies issued by Tier One hereunder, (b) the handling of all claims on Policies issued hereunder, and (c) Tier One's compliance with applicable state law.

3. Compensation of GA.

3.1 Definitions. "First-Year Commission" for a Policy means a percentage of the annualized premium amount for the first 12 months that the Policy is in force on a premium-paying basis. "Renewal Commission" for a Policy means a percentage of the annualized premium amount that is earned by Tier One during each 12-month period that the Policy is in force on a premium-paying basis beginning with the 13th month, and such Renewal Commission shall be based on an amount not greater than the annualized premium amount applicable at the time the Policy is initially issued.

3.2 Payment of Commissions Generally. So long as GA is not in breach of the terms of this Agreement, and subject to the other terms and limitations set forth in this Agreement, as compensation for its services hereunder, GA shall be entitled to receive personal production commissions on Policies sold by it, and override commissions on Policies sold by the Producers and the Associates in the states where the Policies generating such commissions are authorized by Tier One and applicable laws and regulations, and in states where GA, the Producers and the Associates are duly licensed and appointed, in every instance where the Policies are issued after the date of this Agreement. Specifically, GA shall be entitled to receive monthly as earned (a) a First-Year Commission on each Policy sold by GA, the Producers and the Associates in accordance with the terms and conditions of the Commission Structure (as defined below) and (b) Renewal Commissions on such Policies in force in accordance with the terms and conditions of the Commission Structure. GA shall not participate in the Tier One Stock Bonus Program. No commissions will be paid on individual policies issued by Tier One under a mass marketing or direct mail program unless Tier One specifically agrees in writing to do otherwise.

3.3 Commission Rates. The standard percentage rates for First-Year Commissions and Renewal Commissions applicable to each type of Policy are set forth in the "Commission Structure" as identified on the page preceding the signature page of this Agreement or within a separate addendum. GA acknowledges that it has received a complete copy of said Commission Structure, which is incorporated in this Agreement by this reference. The applicable commission level(s) at which GA is entitled to receive commissions in standard situations is (are) identified on the signature page in conjunction with the Commission Structure. Level (01) applies to personal production only. Should more than one person claim entitlement to a commission, one gross commission will be apportioned among the claimants as determined by GA, in its sole discretion. In no event will Tier One be liable for more than one gross commission per Policy. The commission for Policies not listed in the Commission Structure and situations that are nonstandard or not contemplated by the Commission Structure shall be governed by Tier One's then-current rules, rates and practices. Any special or unique commission arrangement or commission splits requiring new or special situation codes shall be controlled by and paid in accordance with Tier One's then-current rules, rates and practices. In computing commissions, the determination of Tier One with respect to the type, classification or identification of each Policy, the applicable Commission Structure or commission and the apportionment thereof, and the classification with respect to commissions due to override and personal production rates shall be final and conclusive.

3.4 Changes in Commission Rates. GA acknowledges and agrees that the Commission Structure applies only to Policies issued and in force on and after the date of such Commission Structure. GA further acknowledges and agrees that Tier One, upon 30 days' written notice to GA, may change the Commission Structure for commissions with respect to (a) any Policies issued and in force on or after the date of the change, and (b) any Policies issued before the date of the change but in force after such date if there has been a change in federal, state or other laws mandating an increase in loss ratios. Any such modifications changing the Commission Structure and their effective dates will be in writing and communicated to GA, and shall be incorporated in this Agreement as of the effective date of such change.

3.5 Charges to GA. Tier One shall charge GA for the following: (a) commission refunds for First Year Commissions paid in advance for Policies upon which such commission is not earned and for refunds of earned premium made by Tier One in its sole discretion, (b) any other administrative service fees charged by an account or group with respect to a Policy or an account through which Policies are sold.

3.6 Conversions; Riders; Reinstatement of Lapsed Policies. In the event of (a) a conversion of an existing Policy to another Tier One policy with the cancellation of the older Policy, (b) the addition or deletion of a rider to an existing Policy, (c) the reinstatement of a lapsed Policy, (d) the reduction in premium on a Policy or (e) similar kinds of changes with respect to Policies, Tier One's commission payment obligations shall be as provided by then-current Tier One rules, rates and practices, which Tier One may change in its sole discretion upon 30 days' written notice to GA.

3.7 **Monthly Accounting Statements**. Tier One shall mail to GA each calendar month a monthly accounting statement showing personal and override commissions earned and charges and credits made during the period covered by the statement. All information set forth in the statement (including, without limitation, (a) the apportionments of commissions among GA, Producers and Associates, (b) any special, unique or one-time commission provisions, and (c) any deductions from commissions earned for indebtedness owed to Tier One as a result of advances made by Tier One to GA) shall be deemed correct and accepted by GA if it does not notify Tier One of its objections in writing within 45 days after the date the statement was mailed.

3.8 **Advances of First-Year Commissions**. GA must elect to receive First-Year Commissions for Policies produced by GA either as earned or in the form of an advance. Failure by GA to make such an affirmative election, or GA's election of both options, shall be deemed to be an election by GA to receive First-Year Commissions as earned.

GA must select one of the following options by initialing in the appropriate space for elections on the page preceding the signature page of this Agreement.

(a) GA shall receive all First-Year Commissions as earned.

OR

(b) GA shall receive First-Year Commissions for Policies produced by GA in advance according to Tier One's then-current payment schedule for advances. GA acknowledges that commissions, if any, payable because a rider or endorsement is added to a Policy after the original issue date shall not be paid as an advance but shall be paid to GA as earned. In addition, GA agrees that any sums advanced to GA shall constitute an indebtedness of GA to Tier One that shall be payable immediately upon demand by Tier One without notice. In satisfaction of its rights under this provision, Tier One may deduct from any commissions earned by and credited to GA an amount equal to any such indebtedness resulting from advances.

3.9 **Sales Contests**. GA may be eligible to participate in certain sales contests offered by Tier One Headquarters subject to the terms and conditions as prescribed by Tier One from time to time. If GA desires not to participate in such sales contests then Tier One should be given written notification in advance. GA shall not participate in the Tier One Stock Bonus Program.

3.10 **Survival of Right to Receive Renewal Commissions**. GA's right to receive Renewal Commissions earned under this Agreement shall survive any termination of this Agreement except for a termination by Tier One "for just cause" (as defined in Section 4 below) or if Tier One discovers that GA is committing any of the acts prohibited by Sections 5 and 6. If GA is an individual, GA's right to receive Renewal Commissions shall pass on his death as provided under GA's will or the laws of intestacy. If GA is a partnership, corporation or limited liability company, and the partnership, corporation, limited liability company is dissolved, the right to receive Renewal Commissions shall pass to any individual or entity designated in a writing delivered to Tier One signed by a majority in interest of partners or members or by shareholders owning a majority of the stock of the corporation, partnership or limited liability company, as the case may be.

3.11 **Termination of Commissions**. If this Agreement is terminated for just cause as set forth in Section 4 below, or if Tier One, before or after the termination of this Agreement, should discover that GA has committed or is committing any of the acts described in Sections 4, 5 or 6 of this Agreement, all of GA's rights to any accrued, deferred or otherwise unpaid commissions under this Agreement shall terminate. A termination under this Section 3.11 shall not constitute an election by Tier One to forego any claim it may have against GA.

3.12 **Limited Assignment of Benefits**. GA may not assign to a third party any right to receive commissions that GA has under this Agreement during GA's lifetime without Tier One's prior written consent. GA hereby grants to

Tier One a security interest against, and Tier One reserves a lien upon, all of GA's rights to receive First-Year Commissions and Renewal Commissions to secure the payment of any indebtedness that GA may owe Tier One. Any assignment by GA to a third party shall be subject to Tier One's prior right of offset and its prior security interest.

3.13 **Miscellaneous**. At no time shall Tier One be obligated to reimburse GA for any expenses unless Tier One agrees to do so in writing. Tier One may charge a policyholder a registration fee at the time a Policy is sold, and Tier One may, in its sole discretion, pay GA a commission on such registration fee at the personal production level. Tier One may also charge a policyholder a processing fee, for which GA shall not be entitled to receive any commission.

4. **Termination**. Either Tier One or GA may terminate this Agreement at any time without cause or reason by giving the other party 30 days' prior written notice or such longer notice as may be required by applicable state law. Tier One may terminate this Agreement immediately, without notice to GA, for just cause. A termination shall be deemed "for just cause" if GA (or any shareholder, partner or member of GA signing this Agreement): (a) breaches any provision of this Agreement, including, but not limited to, the provisions of Sections 5 and 6; (b) violates any insurance law or regulation where the violation could have an adverse effect on Tier One; (c) withholds or converts Tier One property; or (d) commits any willful or dishonest act that could have an adverse effect on Tier One. The failure of Tier One to exercise any of its rights under this Section 4 shall not preclude it from invoking these rights in the future based on the same or other circumstances. In the event this Agreement is terminated by either party for any reason, the appointment by Tier One and each of the Producers shall automatically terminate and GA shall immediately notify each Producer in writing of such termination.

5. **Confidentiality Trademarks: Return of Materials**.

5.1 **Confidentiality**. GA acknowledges that Tier One has a proprietary interest in the personal identification information of its policyholders with whom GA shall maintain in strict confidence, and shall not use or disclose except as required to perform its duties for Tier One, all Trade Secrets and Confidential Information of Tier One. This obligation shall apply (a) at all times during the term of this Agreement, (b) for Trade Secrets at all times after this Agreement is terminated for so long as the pertinent information or data remain Trade Secrets, and (c) for Confidential Information for a period of three years after the termination of this Agreement. This obligation shall apply whether or not the Trade Secrets and Confidential Information are in written or tangible form.

For purposes of this Agreement, a "Trade Secret" is defined as any information, including, but not limited to, technical or nontechnical data, a formula, a pattern, a compilation, a program, a device, a method, a technique, a drawing, a process, financial data, financial plans, product plans, or a list of actual or potential customers or suppliers that: (a) derives economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use; and (b) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy (the parties acknowledging that GA is itself responsible for implementing and enforcing such efforts). "Confidential Information" is defined as any information that may not be considered a Trade Secret but that is confidential and valuable to Tier One's business. Without limiting the generality of the foregoing, GA acknowledges that information regarding payroll deduction accounts, account or premium invoices, payroll account servicing documents, claimant data including payment sheets or letters, training and educational manuals developed by GA, administrative manuals, policy expiration data and prospective policyholder leads developed exclusively by Tier One (e.g., "lead cards"), in whatever form, whether or not computer or electronically accessible "on-line," is Confidential Information to the extent not Trade Secrets. Trade Secrets and Confidential Information do not include public information or information possessed by GA independently of GA's activities with or on behalf of Tier One. To the extent consistent with the foregoing, GA is authorized to provide Tier One claimant data to another insurance company for the sole purpose of the other insurance company's analyzing the risks and underwriting the sale to Tier One policyholders of insurance products of that other insurance company that are not similar to policies sold by Tier One, provided that prior to release of this claimant data, the other insurance company provides Tier One with written covenants essentially identical to those provided by GA to Tier One in this Section 5 and in Section 6.1.

5.2 **Trademarks**. GA acknowledges that all rights in any trademarks associated with the business of Tier One (or of its Affiliates) (i.e., Aflac trademarks, trade names, service marks, slogans, logos, designs and other similar means of distinction), including all goodwill pertaining thereto (collectively, the "Trademarks"), shall be the sole property of Tier One and/or its affiliates. GA may use and display such Trademarks only in the manner and for the purpose authorized by Tier One, and only during the term of this Agreement. Tier One reserves the right to add to, change or discontinue the use of any Trademark, on a selective or general basis, at any time. GA shall not use any Trademark of Tier One in any corporate, partnership, limited liability company or business name without Tier One's prior written consent.

5.3 **Return of Materials; Cessation of Use of Tier One Property**. Upon the request of Tier One and, in any event, upon the termination of this Agreement, GA shall deliver to Tier One all memoranda, notes, records, drawings, manuals, disks and other documents and media pertaining to Tier One's business or GA's duties hereunder, including all copies, extracts, summaries and analyses thereof.

5.4 **Protected Information.** GA agrees that all information personally identifiable to a Tier One insured or beneficiary, or about a potential insured that GA receives from Tier One, the individual, the individual's employer or otherwise, shall be treated by GA as Protected Information. "Protected Information" shall include, but not be limited to, the individual's age, date of birth, gender, family/marital status, Social Security number, e-mail address, health benefits information, salary information, financial information, health information and medical records (including any information concerning the physical or mental health of the individual, health treatment or payment for any health treatment). GA agrees to treat with strict confidentiality any Protected Information GA receives from whatever source. This includes the following: GA agrees that GA will not use or disclose any Protected Information for any purpose other than the purpose for which GA received the Protected Information or any other purpose expressly permitted by law, rule or regulation; GA agrees that GA will not further disclose any Protected Information, except as provided for herein, to any other party (other than those persons within Tier One authorized to receive the Protected Information) without the express written authorization to do so from the individual that is the subject of the Protected Information; GA agrees that GA will establish and have in place reasonable administrative, physical and technical safeguards to guard the Protected Information GA receives; GA agrees that GA will abide by all relevant policies and procedures (including but not limited to any relevant guidelines) that Tier One may adopt with respect to the treatment of Protected Information and all such policies and procedures shall be deemed incorporated by reference into this Agreement (provided a copy has been provided to GA); and GA agrees that GA will comply with all applicable state and federal laws, rules and regulations to the extent same apply to the Protected Information or any part of the Protected Information, including but not limited to the requirements of Title V of the Gramm- Leach-Bliley Act, Public Law 106-102, and any rules promulgated by the U.S. Department of Health and Human Services enforcing the privacy and security requirements of the Health Insurance Portability and Accountability Act of 1996, Public Law 104-191. GA shall not, directly or indirectly, use, handle or further disclose any Protected Information other than as set forth in this Section. Any such unauthorized use of Protected Information shall be considered conduct prohibited by this Agreement. In the event of termination of the Agreement, GA will return to Tier One or destroy all Protected Information and not retain any such information in any form, including electronic.

6. **Restricted Conduct**.

6.1 **Policy Replacement**. During the term of this Agreement and for two years after this Agreement is terminated, and in the Territory (as defined in Section 6.3 below), GA shall not induce or encourage or permit the Producers or Associates to induce, on a systemic basis, any policyholder of Tier One to reduce, terminate or replace his or her current level of coverage under any Policy in favor of any non-Tier One-sponsored policy. This restriction shall not apply to Tier One Medicare Supplement and Final Expense policyholders with whom GA, the Producers or the Associates had direct or indirect contact while representing Tier One within the immediately preceding two years, the marketing or sale of which resulted in compensation, commissions or earnings for GA, Producers or Associates.

6.2 **Recruitment of Agents and Employees**. During the term of this Agreement and for two years after this Agreement is terminated, GA shall not target, in a systemic manner the general agents, producers, associates or employees of Tier One's affiliates (*e.g.*, American Family Life Assurance Company of Columbus or American Family Life Assurance Company of New York) for recruitment or solicitation of employment or contracting as an independent contractor (e.g., agent or producer) with a campaign targeted specific at such individuals or (b) otherwise engage the services of any general agents, producers, associates or employees of Tier One's affiliates, for purposes of soliciting Policies or business under this Agreement. Notwithstanding the foregoing, this Section 6.2 shall not prohibit the hiring or contracting by GA of a general agent, producer, associate or employee of Tier One's affiliates: (a) who is solicited in the ordinary course of GA's general advertising and non-targeted recruitment activities or practices, or (b) who independently contacts GA without solicitation by GA.

6.3 **Definition of Territory**. As used in this Agreement, "Territory" shall refer to the geographical areas set forth in all appointment certificates (or governing documents) issued to GA by Tier One during the term of this Agreement and maintained in Tier One's office. The current versions of such certificates, for purposes of such determination, are hereby incorporated in this Agreement. Each certificate subsequently issued during the term of this Agreement shall automatically, upon its acceptance by GA, supplement or supersede (depending on its coverage) the prior certificates and be incorporated in this Agreement for purposes of such determination. Acceptance may be indicated by GA's written acknowledgment or deemed by GA's actions in reliance on such certificate, including transfer in location or acceptance of fees or commissions relevant to such geographic location. GA may positively indicate its nonacceptance of such certificate by so notifying Tier One in writing, in which case only the prior certificates shall remain in effect. GA acknowledges that by agreeing to represent Tier One in such geographical areas pursuant to such appointment certificates, GA is binding itself to comply with the covenants in this Section 6 in those areas. GA acknowledges that this is the best and most practical description of the areas where GA operates based on its actual marketing, oversight and compensation. Notwithstanding anything to the contrary herein, the term "Territory" shall not include any geographical areas where GA, the Producers or the Associates have not represented Tier One at any time during the immediately preceding two years.

7. **Arbitration**. Except as set forth in Section 8 below, any claim, controversy or dispute arising between the parties with respect to this Agreement, including any alleged tort related to this Agreement or the activities associated with this Agreement, to the maximum extent allowed by applicable law and irrespective of the form of relief sought, shall be submitted to and resolved by arbitration. Such arbitration shall be the sole remedy with respect to such matter, and the parties agree that the arbitrators cannot award any punitive or exemplary damages or any damages other than compensatory. The arbitration shall be conducted in Atlanta, Georgia, and shall be conducted pursuant to the terms of the Federal Arbitration Act and the Commercial Arbitration Rules of the American Arbitration Association, except as otherwise specified herein, including, without limitation, the exception that the arbitrators cannot award punitive or exemplary damages or any damages other than compensatory. Either party may notify the other party at any time of the existence of an arbitrable controversy by certified mail and shall attempt in good faith to resolve their differences within 15 days after the receipt of such notice. Notice to GA shall be sent to GA's principal business address pursuant to Section 11 below, and notice to Tier One shall be sent to: Arbitration Officer, Tier One Insurance Company, 1932 Wynnton Road, Columbus, Georgia 31999. If the dispute cannot be resolved within the 15-day period, either party may file a written demand for arbitration with the other party. The party filing such demand shall simultaneously specify its arbitrator, giving the name, address and telephone number of said arbitrator. The party receiving such notice shall notify the party demanding the arbitration of its arbitrator, giving the name, address and telephone number of the arbitrator within five days of the receipt of such demand. The arbitrators named by the respective parties need not be neutral. The American Arbitration Association, on request by either party, shall appoint a neutral person to serve as the third arbitrator, and shall also appoint an arbitrator for any party failing or refusing to name its arbitrator within the time specified in this Section 7 The arbitrators thus constituted shall promptly meet, select a chairperson, fix the time and place of the hearing, and notify the parties. To the extent practical, the arbitrators shall provide for the hearing to commence within 60 days after the arbitrators have been empaneled. The majority of the panel shall render an award within 10 days of the completion of the hearing, and shall promptly transmit an executed copy of the award to the respective parties. The award of the arbitrators shall be final, binding and conclusive upon the parties hereto. Each party shall have the right to have the award enforced by any court of competent jurisdiction.

8. **Injunction**. In the event of any breach by GA of any covenant contained in Section 5 or 6 of this Agreement, the resulting injuries to Tier One would be difficult or impossible to estimate accurately, but it is certain that injury or damages will result to the business of Tier One. GA therefore agrees that, in the event of any such breach, Tier One shall be entitled, in addition to any available legal or equitable remedies for damages, to an injunction to restrain the violation or anticipated violation thereof. Tier One's rights under this Section 8 shall be in addition to every other remedy (equitable, statutory, legal or contractual) to which Tier One may be entitled.

9. **Indemnity**. Each party shall indemnify the other party hereto fully for any cost, liability or harm (including, without limitation, attorneys' fees incurred in connection therewith or in connection with enforcing this indemnity) suffered by the non-breaching party as a direct or indirect result of the breaching party's breach of any of the terms of this Agreement or nonfulfillment of any covenant or agreement of the breaching party made in or pursuant to this Agreement.

10. Miscellaneous. Except as provided in Section 3.12, no assignment of this Agreement by GA or any commissions due under this Agreement shall be valid unless in writing and approved in advance by an authorized officer of Tier One. No modification or waiver of any term of this Agreement shall be binding on Tier One unless in writing and signed and approved by an authorized officer of Tier One. This Agreement is governed by the laws of the state in which GA's principal office is located, as such laws apply to a contract made, delivered and performed in such state, notwithstanding the locale for performance or payment of any compensation, without giving effect to the principles of conflicts of law in such state. This Agreement supersedes and replaces any agreement previously entered into between GA and Tier One with respect to Policies issued after the date of this Agreement. Tier One's failure to enforce any provision of this Agreement shall not constitute a waiver of any provision of this Agreement. The provisions of this Agreement shall be deemed severable. In the event any provision of this Agreement is determined to be unenforceable or invalid, such provision shall nonetheless be enforced to the fullest extent permitted by applicable law, and such determination shall not affect the validity and enforceability of any other remaining provisions of this Agreement. This Agreement, together with all schedules attached hereto and all writings incorporated herein by reference, constitute the entire agreement between GA and Tier One with respect to the subject matter of this Agreement. The captions and headings in this Agreement are inserted for convenience of reference only and are not to be construed as part of this Agreement or limitations on the scope of this Agreement. All pronouns used in this Agreement shall be deemed to refer to the masculine, feminine or neuter gender as the context requires.

11. Right of Setoff. GA agrees to grant Tier One a valid first lien on all commissions, service fees and any other compensation payable under this Agreement as security for the payment of any and all debts or claims due or to become due Tier One from the GA or any Producer pursuant to this Agreement. Tier One may charge and set off any such amounts due from compensation payable. In addition, GA agrees to pay interest on any such outstanding indebtedness at the maximum rate of interest permitted by law. In the event of default on any debt or claim due or to become due Tier One from the GA or Producer pursuant to this Agreement, Tier One is authorized, without notice and without any judicial action, to foreclose its lien by crediting any or all of such commissions, service fees or other compensation, accrued or to accrue, toward the reduction of such debt or claim.

12. Notices.

All notices to be provided under this Agreement shall be in writing and shall be deemed to have been given personally if delivered as follows, to the extent allowed by law:

(a) Notices Sent to GA: Any such notices may be sent by email or by United States mail to the physical address or email specified on the signature page of this Agreement or, if GA has provided a new email or physical address to Tier One, to the email or physical address Tier One has in its records for GA.

(b) Notices Sent to Tier One: Communications regarding a change in GA's email or physical address must be sent to Field Contracting and Compensation. Notifications regarding any other matters must be sent via email or United States Mail to Tier One's General Counsel at 1932 Wynnton Road, Columbus, Georgia 31999.

Either party may furnish the other with different physical or email addresses than the ones listed on the signature page of this Agreement if done so in writing. Any (i) notices sent by electronic mail shall be deemed received when confirmed by non-automated response or, if not so confirmed, on the first Business Day after being sent, and (ii) notices sent by United States mail shall be deemed given five Business Days after the date of deposit in the United States mail.

GA may separately be requested to provide Tier One with consent to receive notices or communications in an electronic format (including by means other than email), to the extent allowed by law. If GA consents to receive notices or communications in an electronic format (including by means other than email), to the extent allowed by law, Tier One will discontinue sending any notices or communications by mail or email to GA, unless and until GA withdraws such consent to receive notices or communications in an electronic format (including by means other than email).

<u>GA's Election with Respect to Advances</u>:

Per Section 3.8, *Advances of First-Year Commissions*, GA elects either:

> **(Please initial your election. Failure by GA to make such an affirmative election, or GA's election of both options, shall be deemed to be an election by GA to receive First-Year Commissions as earned.)**
>
> _______ To receive such commissions AS EARNED, per Section 3.8(a).
>
> **OR**
>
> _______ To receive such commissions IN ADVANCE, per Section 3.8(b).

GA acknowledges the following Commission Structure.

Level [   ]

The applicable level should be provided by the individual furnishing the above Commission Structure to GA, subject to the approval of Tier One at its headquarters by execution of this Agreement.

SIGNATURES

BY GA:

Signature____________________Date:____________________

Print Name:____

Address:____

TIER ONE INSURANCE COMPANY:

Signature: Keith Farley

Printed Name: Keith Farley

Title: SVP, Individual Voluntary Benefits

Effective Date of Agreement: